

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Squad #10	CCRB Case #: 201602826	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/25/2016 1:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/25/2017	Precinct: 40		
Date/Time CV Reported Fri, 03/25/2016 8:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/04/2016 10:49 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Francisco Diodonet	31860	936497	040 PCT
2. SGT Raymond Ip	1959	938695	040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christoph Widmer	18703	959367	040 PCT
2. POM Christophe Carter	18856	958374	040 PCT
3. POF Erika Dionicio	05426	956602	040 PCT
4. POM Willie Ng	15673	957898	040 PCT
5. POM Rajindra Bharath	11746	948669	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Raymond Ip	Abuse: Sergeant Raymond Ip authorized the entry and search of § 87(2)(b) in the Bronx.	A . Substantiated
B . POM Francisco Diodonet	Abuse: Police Officer Francisco Diodonet damaged § 87(2)(b)'s property.	B . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On March 25, 2016, at approximately 1:30 p.m., Sgt. Raymond Ip, PO Willie Ng, PO Francisco Diodonet, PO Erika Dionicio, PO Christopher Widmer, and PO Raymond Carter, of the 40th Precinct, responded to § 87(2)(b), in the Bronx, in regards to a larceny in progress. When the officers arrived they met with § 87(2)(b), § 87(2)(b) old at the time, who informed the officers that § 87(2)(b) had stolen his phone and ran into § 87(2)(b) § 87(2)(b) in the Bronx. Consequently the officers knocked on the door for several minutes before § 87(2)(b) and § 87(2)(b) § 87(2)(b) answered the door.

For approximately 20 to 30 minutes the officers asked if the subject of the larceny was inside, which the residents denied. Then without notice, the officers allegedly forcibly entered the apartment (**Allegation A**). § 87(2)(b) and § 87(2)(b) attempted to close the doors on the officers, but the officers allegedly pushed the door back, causing the door knob to strike § 87(2)(b) in the stomach. Once inside the apartment, PO Diodonet allegedly broke a locked rear bedroom door to gain entry (**Allegation B**). Officers searched for and apprehended § 87(2)(b), who was hiding in a closet in the bedroom (**within Allegation A**).

§ 87(2)(b) was arrested for § 87(2)(b)

This case exceeded the 90-day benchmark due to § 87(2)(b) not providing a statement to the investigation until July 8, 2016. § 87(2)(g)

Video Footage

Building security footage of this incident was obtained, however the entry is not captured as the door to § 87(2)(b) is not in the frame of the video. The video shows the police response and eventually § 87(2)(b) being escorted out of the apartment and out of the building. More detail related to the video is located in Board Review 10.



2016-08-08 7-52-07.mp4

Mediation, Civil and Criminal Histories

- Due to the allegation of property damage, this case was unsuitable for mediation.
- A notice of claim inquiry was sent to the Office of the Comptroller on June 29, 2016. A response to this inquiry will be included in the case file upon its receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) filed one prior case with the CCRB § 87(2)(b)
- Sgt. Raymond Ip has been a member of the service for 10 years, he has two prior CCRB complaints filed against him containing four allegations, none of the allegations were substantiated § 87(2)(g).
- PO Francisco Diodonet has been a member of the service for 11 years, he has four prior CCRB complaints filed against him containing five allegations, one allegation was substantiated. In CCRB case 201506161 a failure to obtain medical treatment allegation was substantiated and the CCRB recommended formalized training. There is no NYPD disposition available in CTS as of the date of this report.

Potential Issues

- Lexis Nexis and Clear database searches revealed no contact information for § 87(2)(b), additionally, § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) all denied having any contact information for § 87(2)(b) or having any knowledge of where he resides.
- While § 87(2)(b) was present for some of the interaction between the residents and officers, as seen in the video footage, § 87(2)(b) § 87(2)(b) is brought outside of the building prior to the entry and search of the apartment, and therefore would not have witnessed the allegations.

Findings and Recommendations

Explanation of Subject Officer Identification

Sgt. Ip admitted that it was his decision, as the sole supervisor on scene, to enter and search the apartment. § 87(2)(g) PO Diodonet admitted to breaking the bedroom door in the apartment. PO Diodonet denied that anyone authorized him to do so, or ordered him to do so, but rather that he decided to break it down upon learning that the subject they were searching for was inside and the door was locked. § 87(2)(g).

Allegations Not Pleaded

- § 87(2)(g)

Allegation A – Abuse of Authority: Sergeant Raymond Ip authorized the entry and search of § 87(2)(b), in the Bronx.

Allegation B- Abuse of Authority- Police Officer Francisco Diodonet damaged § 87(2)(b) property.

It is undisputed that Sgt. Raymond Ip and officers entered § 87(2)(b) and briefly searched inside of the apartment for § 87(2)(b) § 87(2)(g). According to § 87(2)(b) § 87(2)(b) and § 87(2)(b) and § 87(2)(b) interacted with officers at the front door. After

having denied that officers could search for anyone inside the apartment, officers started forcing their way inside. According to § 87(2)(b) (Board Review 01) and § 87(2)(b) (Board Review 02), PO Diodonet then forced his way inside the location, by pushing the door open while § 87(2)(b) and § 87(2)(b) tried to hold the door closed. The force of PO Diodonet pushing the door open caused the knob of the front door to strike § 87(2)(b) in the stomach, leaving a bruise (Board Review 03). Officers then entered the location, ran through the apartment to a bedroom at the rear of the apartment, and broke the door down and searched the bedroom. All of the civilians denied seeing anyone being removed from that bedroom or arrested. The residents could not provide photographs or documentation to the investigation as evidence of the broken bedroom door.

All officers interviewed stated that while officers were speaking to the residents from outside of the open front door, the larceny victim, § 87(2)(b), identified another (unidentified) individual inside the apartment that assisted in closing the door on § 87(2)(b) and would likely know where the perpetrator would be. § 87(2)(g)

Sgt. Ip (Board Review 05) stated that he then asked § 87(2)(b) if he could speak to the unidentified individual and § 87(2)(b) stepped to the side, indicating to Sgt. Ip an implied consent to enter the residence. Sgt. Ip denied any physical resistance to officers entering and stated once inside the unidentified individual told officers that the perpetrator was in the back bedroom, which officers entered, and then removed the perpetrator. Sgt. Ip did not see or make any observations that indicated to him that property was damaged in order to gain access to the bedroom. He denied seeing the bedroom being entered.

PO Widmer (Board Review 06) denied seeing § 87(2)(b) or § 87(2)(b) consenting, but stated that PO Diodonet later informed him that the unidentified individual had consented to officers entering. He stated that while officers entered the residents inside the apartment appeared angry and were yelling at officers as they were entering. PO Widmer did not know if any officer damaged any property in the apartment and denied seeing the initial entry into the apartment's bedroom.

PO Diodonet (Board Review 07) stated that the officers never obtained consent to enter the apartment, but rather Sgt. Ip authorized them to enter in order to arrest an unknown individual for obstructing Governmental Administration and robbery. According to PO Diodonet, this was the sole reason that they entered at the time. PO Diodonet described the entry as the officers simply walking in. He stated that § 87(2)(b) stepped in the officers' way as they were entering, and the officers walked around her. He denied forcing his way inside, making physical contact with the residents or facing any physical resistance from any residents attempting to close the door on him or get in his way. PO Diodonet then approached the unidentified individual in order to arrest him, but as he approached the individual told PO Diodonet that the perpetrator was in the back bedroom of the residence. PO Diodonet then walked to the backroom, and seeing that the bedroom was locked, broke the locked bedroom door by pushing it open, and searched for the perpetrator inside his bedroom. § 87(2)(b) was then found inside the closet of his bedroom and placed in handcuffs.

§ 87(2)(g)

All officers were consistent that after § 87(2)(b) was arrested, he was brought to the front of the residence and positively identified by § 87(2)(b)

§ 87(2)(g)

Generally officers entering a residence to perform an arrest must possess a warrant. Exceptions to this rule include situations involving consent, an emergency, or exigent circumstances. People v. Lewis, 94 A.D.2d 44(1st Dept. 1983); People v. Greenleaf, 643 N.Y.S. 2d 892 (3rd Dept. 1995); People v. McBride, 14 N.Y.3d 440 (2010).

According to McBride, the following factors have been used to determine if exigent circumstances exist: (1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause, to believe that the suspect committed the crime (4) a strong reason to believe that the suspect is in the premises entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry. McBride, at 446. (Board Review 09).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A** and **B** be closed as *substantiated*.

§ 87(2)(g), § 87(4-b)

Pod:

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date